

24SMCV02412 24SMCV02412

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-26

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Case Number: 24SMCV02412 Hearing Date: August 26, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

SAID BASIRATMAND,

Plaintiff,

v.

TESLA MOTORS, INC., et al.,

Defendants.

Case No.: 24SMCV02412

Hearing Date: August 26, 2026

[TENTATIVE] order RE:

PLAINTIFF'S MOTION FOR

ATTORNEYS' FEES

BACKGROUND

This is lemon law case. Plaintiff Said Basiratmand bought a new 2021 Model 3 from Defendant Tesla Motors, Inc. The car suffered various defects which Defendant's dealerships were not able to repair after a reasonable number of attempts.

Plaintiff sued Tesla on May 21, 2024. The Complaint alleges claims for breach of express warranty, breach of implied warranty and violation of the Song Beverly Consumer Warranty Act. The Complaint appears to be a rote template used by counsel for other lemon law cases. It does not even identify the specific defects that plagued the car or state the purchase price for the Model 3.

There was no answer filed. Instead, Defendant filed a motion to compel arbitration which the Court granted on January 22, 2025. Plaintiff did not oppose the motion to compel arbitration. Prior to the order on the motion to compel arbitration, Plaintiff served form interrogatories, special interrogatories, requests for document production, and requests for admission, and Tesla responded to the discovery requests. (Ex. 7 to Abraham Decl.)

Plaintiff does not describe what happened in the arbitration proceedings. Plaintiff also does not say when the case was settled. Based on Plaintiff's counsel's time records, the Court surmises that the case settled in July 2026, a little over two years after Plaintiff filed the Complaint. The case settled for \$3,500. The Complaint is silent as to the amount of damages Plaintiff was demanding.

This hearing is on Plaintiff's motion for attorneys' fees and costs. Plaintiff seeks \$39,050.40 which consists of \$27,275.00 as the lodestar amount, \$5,455 based on a multiplier enhancement of 1.2, and \$865.40 in costs and expenses. Plaintiff argues that a 1.2 multiplier is necessary because of the "exceptional result" he achieved and given the risk in taking the case on a contingency fee basis.

LEGAL STANDARD

Parties to litigation must generally bear their own attorney's fees, unless they otherwise agree or a statute provides otherwise. (Code Civ. Proc. § 1021.) Here, the Song-Beverly Act ("SBA") provides for the award of attorneys' fees to prevailing plaintiffs as follows:¿

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.¿

(Civ. Code § 1794, subd. (d).)¿

California courts have consistently "rejected the motion that the fee award must be proportionate to the amount of damages recovered." (Niederer v. Ferreira (1987) 189 Cal.App.3d 1485, 1508 (1987).) An attorneys' fee award is to be based upon actual time expended rather than being tied to any percentage of the recovery. (Drouin v. Fleetwood Enterprises (1985) 163 Cal.App.3d 486, 493.) Because Plaintiff is suing under the SBA, the legislative policies are in favor of recovery of all attorney fees reasonably expended without limiting the fees to a proportion of the actual recovery. (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 164.)

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, n.23.)

The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest¿(1977) 20 Cal.3d 25, 49.)¿¿¿The factors considered in

determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).)

A negative modifier is appropriate when duplicative work has been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.) On the other hand, a positive multiplier may be applied to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.)

DISCUSSION

There is no dispute that Plaintiff is the prevailing party, and under the SBA, he is entitled to "attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred." (Civ. Code § 1794.)

In calculating the attorneys' fees, the Court starts with the lodestar which is the reasonable hourly rate multiplied by the reasonable hours expended. (Donovan v. Poway Unified Sch. Dist. (2008) 167 Cal.App.4th 567, 628.) This case was litigated by a single attorney.

Arye Abraham was admitted to practice law in California in June 2021. He has been practicing for a little over five years. He seeks an hourly rate of \$675. (Abraham Decl. ¶ 7.) Other courts have approved his 2025 hourly rate of \$625, with two courts approving his 2026 hourly rate of \$675. (Exs. 1-6 to Abraham Decl.)

The Court concludes that an hourly rate of \$675 for a lemon law attorney who has been practicing for a little over 6 years is not reasonable. The Court will instead use an hourly rate of \$500. (See, e.g., Alma Delia Rios v. Jaguar Land Rover North America, LLC, L.A.S.C. Case No. 21STCV24564 (Hearing Date: May 3, 2023; Dept. 39) (concluding that \$450 per hour was reasonable for a settled Lemon Law case); Igor Bogdanovskiy v. Mercedes-Benz USA, LLC et al., CDCA Case No. 2:23 cv-05312-AB-MAR (Hearing Date: January 24, 2024) (concluding that \$375 per hour was reasonable for a settled Lemon Law case and that a negative multiplier should be applied to reduce the fees sought); Pogosyan v. Jaguar Land Rover North America, LLC, L.A.S.C. Case No. 23AHCv00364 (Hearing Date: June 9, 2025; Dept. 3) (concluding that \$450 per hour was reasonable for a settled Lemon Law case); Farhadian v. Jaguar Land Rover North America, LLC, L.A.S.C. Case No. 24STCV32943 (Hearing Date: September 9, 2025; Dept. 17) (concluding that only \$500 per hour was reasonable for an experienced Lemon Law attorney); Minasyan v. Jaguar Land Rover North America, LLC, L.A.S.C. Case No. 22STCV09257 (Hearing Date: July 17, 2025; Dept. 10) (concluding that \$500 per hour was reasonable for a settled Lemon Law case).)

Turning to the number of hours worked, the Court has the power to make "across-the-board percentage cuts either in the numbers of hours claimed or in the final lodestar figure." (Gonzalez v. City of Maywood, 729 F.3d 1196, 1203 (9th Cir. 2013) (emphasis added). "A reduced [attorneys' fees] award might be fully justified by a general observation that an attorney over litigated a case . . . or that the opposing party has stated valid objections." (Gorman v. Tassajara Dev. Corp. (2009) 178 Cal.App.4th 44, 101 (emphasis added); see also Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38.)

Counsel claims he spent 40.9 hours in prosecuting this case. The Court concludes that 30 hours is sufficient for Plaintiff's counsel to have drafted the pleading, served and responded to discovery, communicated with his client, opposing counsel and AAA, negotiated the settlement, and prepared the fees motion, all of which would have taken little time for a firm with a niche practice in Lemon law cases and with the benefit of prior papers in other cases that were templates for the filings in this case. Given the Court's determination that 30 hours is sufficient, the Court does not go on to consider the specific entries that Defendant challenges as excessive or duplicative.

Plaintiff requests that the Court apply a 1.2 multiplier to counsel's fees due to the novelty, difficulty, and skill displayed in the case and the contingent nature of the case. The Court is permitted, but not required, to apply a multiplier to an award for attorney's fees if, inter alia, there was contingent risk or exceptional skill displayed by the attorneys. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) There is no evidence that this case involved anything novel, nor did it require particular skill. This is a garden-variety lemon law action. Also, the Court cannot conclude that settling for \$3,500 in a case involving a Tesla Model 3 (which was priced between \$35,990 to \$56,990 in 2021) is an "exceptional result", as counsel claims. This characterization appears to be a holdover from other templates used by counsel. There is no basis for a multiplier.

Additionally, under the Song-Beverly Act, a prevailing buyer is entitled to recover his costs and expenses. (See, Civ. Code § 1794(d) [emphasis added].) The California Legislature intended the word "expenses" to cover outlays not included in the detailed statutory definition of "costs," and the Song-Beverly Act's legislative history demonstrates the Legislature exercised its power to permit recovery of a host of litigation expenditures beyond those permitted by Code of Civil Procedure § 1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138.)

A verified memorandum of costs generally satisfies the moving party's burden of establishing costs necessarily incurred. (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682). The burden shifts to Defendants to properly rebut the claimed costs. Plaintiff has filed a verified memorandum of costs (summary). The summary identifies \$447.65 in filing and motion fees, \$75.50 in service of process fees, and \$342.25 for electronic filing or service. The Court concludes that these fees and costs are reasonable.

CONCLUSION AND ORDER

For the foregoing reasons, the Court GRANTS IN PART and DENIES IN PART Plaintiff's motion for attorneys' fees, costs and expenses. The Court awards fees and costs in the amount of \$15,865.40.

DATED: August 26, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court